

OREGON STATE HOSPITAL

POLICY

SECTION 5: Human Resources **POLICY: 5.011**

SUBJECT: Return to Work of Staff Injured
on the Job

POINT PERSON: Director of Safety

APPROVED: Sara Walker, MD  **DATE: OCTOBER 15, 2024**
Interim Superintendent

SELECT ONE: ☐ New policy ☐ Minor/technical revision of
existing policy
☒ Reaffirmation of existing policy ☐ Major revision of existing policy

I. PURPOSE AND APPLICABILITY

- A. This policy describes Oregon State Hospital (OSH) policies and procedures for staff returning to work following an injury.
- B. This policy applies to all staff.

II. POLICY

- A. OSH adopts Department of Administrative Services (DAS) policy 50.020.03, "Reinstatement and Reemployment of Injured Workers," DAS policy 50.020.05, "Early Return to Work of Injured Workers," and Shared Services procedure DHS|OHA 080-002-01, "Early Return to Work of Injured Workers."
- B. OSH follows all applicable regulations, including federal and state statutes and rules; Oregon Department of Administrative Services (DAS), Shared Services, and Oregon Health Authority (OHA) policies; and relevant accreditation standards. Such regulations supersede the provisions of this policy unless this policy is more restrictive.
- C. Staff who fail to comply with this policy or related policy attachments or protocols may be subject to disciplinary action, up to and including dismissal.

III. DEFINITIONS

- A. "Staff" includes employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at Oregon State Hospital (OSH).

IV. RELATED OSH POLICIES AND PROTOCOLS

1.012 Non-Discrimination and Alternate Language Access

5.002 Family Medical Leave

5.007 ADA and Reasonable Accommodation in Employment

5.008 Equal Opportunity Employment or Non-Discrimination

V. REFERENCES

Oregon Administrative Rule § 105-040-0001

Oregon Administrative Rule § 105-050-0025

Oregon Administrative Rule §§ 839-006-0100 - 839-006-0150

Department of Administrative Services (2019). *Reinstatement and reemployment of injured workers*, 50.020.03. Author.

Department of Administrative Services (2020). *Early return to work of injured workers*, 50.020.05. Author.

Oregon Revised Statute § 240.015

Oregon Revised Statute § 240.145

Oregon Revised Statute § 240.250

Oregon Revised Statute § 240.306

Oregon Revised Statute § 656.340

Oregon Revised Statute § 659A.043

Oregon Revised Statute § 659A.046

Oregon Revised Statute § 659A.052

Shared Services (2007). *Early return to work of injured workers procedure*, DHS|OHA 080-002-01. Author.